IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

CONDITIONAL REQUEST FOR SUSPENSION OF ACTION
UNDER 37 CFR § 1.103(a) (SIX-MONTH SUSPENSION)

Applicant / Inventor:	Reinaldo Javier Aguiar Marcano
Application Number:	19/561,236
Filing Date:	March 9, 2026
Confirmation Number:	2827
Examiner:	ANDREA BENNETT
Office of Petitions:	Cliff Congo, Attorney Advisor
Entity Status:	SMALL ENTITY (37 CFR § 1.27)
Title of Invention:	PROTOCOL FOR PHYSICAL AND DATA-LINK LAYER ENCODING NEGOTIATION

Mail Stop Missing Parts
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

Pursuant to 37 CFR § 1.103(a) and MPEP § 709, the pro se Applicant, Reinaldo Javier Aguiar Marcano, hereby respectfully requests that the Office suspend action in the above-identified application for a period of **six (6) months**.

I. CONDITIONAL NATURE OF REQUEST (MPEP § 709)

Applicant acknowledges that under MPEP § 709, a suspension of action under 37 CFR § 1.103(a) cannot be granted during pre-examination processing while a Notice to File Missing Parts or Notice of Incomplete Reply is outstanding. Accordingly, this request is expressly structured as a **CONDITIONAL REQUEST** to take effect automatically upon the Office of Patent Application Processing (OPAP) verifying that the accompanying response package has fully cured all pre-examination formalities and entering the application into Technology Center 2100.

II. SHOWING OF GOOD AND SUFFICIENT CAUSE

Good and sufficient cause exists for the requested suspension under 37 CFR § 1.103(a):

1. **Active Federal Civil Rights and Constitutional Litigation:**
   Applicant is the sole plaintiff in active federal litigation currently pending before the United States District Court for the Southern District of Texas, Houston Division, Case No. 4:26-cv-08794 (assigned to Judge Kenneth M. Hoyt; Cause: 28:1983 Civil Rights, Nature of Suit: 440 Civil Rights).

2. **Protection of Patent Rights and Preservation of Status Quo:**
   The federal action seeks emergency injunctive relief to restrain unlawful state-court proceedings that have severely impaired Applicant's physical liberty and ability to access commercial counsel. A six-month suspension will allow the federal court to rule on the pending application for temporary restraining order and preserve Applicant's intellectual property assets without forcing premature abandonment or uncoordinated prosecution.

III. STATUTORY PROCESSING FEE RECONCILIATION

The processing fee for a request for suspension under 37 CFR § 1.17(i) is **$60.00** for a Small Entity (Fee Code 2830). Applicant remits said $60.00 fee concurrently herewith via electronic fee payment in Patent Center.

Respectfully submitted,

/Reinaldo Javier Aguiar Marcano/
Reinaldo Javier Aguiar Marcano
Inventor and Pro Se Applicant
Mailing Address: 2302 Britton Ridge Drive, Katy, Texas 77494
Telephone: (202) 599-3979
Email: `rj.aguiar@gmail.com` (USPTO Account)
Email: `rj.aguiar.m@gmail.com`
Email: `reinaldo.aguiar.marcano@isbn9781971481296.com`
Date: October 10, 2026